Appendix—Public Land Orders

[Public Land Order 791]

NEW MEXICO

PARTIAL REVOCATION OF PUBLIC LAND ORDER NO. 629 OF JANUARY 13, 1950, RESERVING LANDS FOR USE OF THE DEPARTMENT OF THE AIR FORCE

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 629 of January 13, 1950, reserving lands for the use of the Department of the Air Force as a bombing and gunnery range, is hereby revoked so far as it affects the public lands within the following-described areas:

NEW MEXICO PRINCIPAL MERIDIAN

T. 26 S., R. 18 E.,
Secs. 19, 20, 21, and 28 to 33, inclusive.

The areas described, including both public and non-public lands, aggregate 4,736.87 acres.

The lands are chiefly valuable for grazing.

No applications for these lands may be allowed under the homestead, small tract, desert land, or any other non-mineral public land laws, unless the lands have already been classified as valuable or suitable for such types of application or shall be so classified upon consideration of an application.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, and selection as follows:

(a) *Ninety-one day period for preference-right filings.* For a period of 91 days, commencing at the hour and on the day specified above, the public lands affected by this order shall be subject only to (1) application under the homestead or the desert-land laws or the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a), as amended, by qualified veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747 (43 U. S. C. 279–284), as amended, subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications under subdivision (1) of this paragraph shall be subject to applications and claims of the classes described in subdivision (2) of this paragraph. All applications filed under this paragraph either at or before 10:00 a. m. on the 35th day after the date of this order shall be treated as though filed simultaneously at that time. All applications filed under this paragraph after 10:00 a. m. on the said 35th day shall be considered in the order of filing.

(b) *Date for non-preference-right filings.* Commencing at 10:00 a. m. on the 126th day after the date of this order, any lands remaining unappropriated shall become subject to such application, petition, location, selection, or other appropriation by the public generally as may be authorized by the public-land laws. All such applications filed either at or before 10:00 a. m. on the 126th day after the date of this order, shall be treated as though filed simultaneously at the hour specified on such 126th day. All applications filed thereafter shall be considered in the order of filing.

A veteran shall accompany his application with a complete photostatic, or other copy (both sides), of his certificate of honorable discharge, or of an official document of his branch of the service which shows clearly his honorable discharge as defined in § 181.36 of Title 43 of the Code of Federal Regulations, or constitutes evidence of other facts upon which the claim for preference is based and which shows clearly the period of service. Other persons claiming credit for service of veterans must furnish like proof in support of their claims. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated statements in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the Land and Survey Office, Santa Fe, New Mexico, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations and Part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations, and applications under the desert-land laws and the said Small Tract Act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the Manager, Land and Survey Office, Santa Fe, New Mexico.

R. D. SEARLES,
Acting Secretary of the Interior.

JANUARY 19, 1952.

[F. R. Doc. 52-949; Filed, Jan. 24, 1952; 8:45 a. m.]

[Public Land Order 792]

ALASKA

REVOKING EXECUTIVE ORDER NO. 3473 OF MAY 25, 1921 WITHDRAWING THE RELEASED LANDS FOR TOWN-SITE PURPOSES

By virtue of the authority vested in the President by section 2380 of the Revised Statutes (43 U. S. C. 711), and otherwise, and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 3473 of May 25, 1921, reserving the following-described land for the use of the Signal Corps, United States Army, in connection with the maintenance of telegraph communication in Alaska, is hereby revoked:

Beginning at Corner No. 1, marked by an iron pipe monument about two and three-eighths inches in diameter, being centered by a tack by means of a wooden plug, and placed at the intersection of the east line of the Saint Peter Claver Mission and the bank of the Yukon River; thence N. 25° 30' W. 1,780 feet following the East boundary line of the said Mission to Corner No. 2, marked by a monument of the same description as said monument at Corner No. 1; thence N. 64° 30' E. 970 feet to Corner No. 3, marked by a monument of the same description as said monument at Corner No. 1; thence S. 25° 30' E. 1,340 feet to Corner No. 4, marked with a monument of the same description as said monument at Corner No. 1; thence S. 64° 30' W. 850 feet to Corner No. 5, marked with a monument of the same description as said monument at Corner No. 1; thence S. 25° 30' E. 450 feet to Corner No. 6, marked with a monument of the same description as said monument at Corner No. 1; thence S. 64° 30' W. 108 feet, following the meanderings of the bank of the Yukon River to Corner No. 1, the point of beginning; containing an area of 30.7 acres more or less. All courses refer to the true meridian.

The lands described above are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws and reserved for town-site purposes, to be hereafter disposed of under applicable town-site laws.

R. D. SEARLES,
Acting Secretary of the Interior.

JANUARY 19, 1952.

[F. R. Doc. 52-950; Filed, Jan. 24, 1952; 8:45 a. m.]

[Public Land Order 793]

IDAHO

REVOCATION OF PUBLIC LAND ORDER NO. 94 OF MARCH 5, 1943

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 94 of March 5, 1943, as amended by Executive Order No. 9526 of February 28, 1945, reserving the public lands in the following-described areas in Idaho for the use of the War Department for military purposes, is hereby revoked:

BOISE MERIDIAN

T. 10 S., R. 27 E.,
Secs. 2, 3, 10, and 11.
T. 4 S., R. 30 E.,
Secs. 26, 34, 35, and 36.
T. 5 S., R. 30 E.,
Secs. 1 to 4, inclusive, secs. 8 to 11, inclusive, secs. 15 to 21, inclusive, and sec. 29.

The areas described, including both public and non-public lands aggregate 15,421.88 acres.

The lands are chiefly valuable for grazing purposes.

No applications for these lands may be allowed under the homestead, small tract, or desert-land laws, or any other non-mineral public-land laws, unless the lands have been classified as valuable or suitable for such types of applications or shall be so classified upon the consideration of an application.

This order shall not otherwise become effective to change the status of such